

PREARRANGEMENT FUNERAL SERVICE CONTRACT

TRUSTEE: CLEARPOINT FEDERAL BANK & TRUST, ONE FORETHOUGHT CENTER, SUITE 201, P.O. BOX 59 • BATESVILLE, INDIANA 47006

PLEASE PRINT

This Prearrangement Funeral Service Contract is being made between:

FUNERAL ESTABLISHMENT - located at

CITY STATE ZIP

TELEPHONE NUMBER, and

PURCHASER

1 FUNERAL RECIPIENT

☐ MR.
☐ MRS. FIRST NAME MIDDLE NAME LAST NAME
☐ MS.
☐ MISS SOCIAL SECURITY NUMBER
DATE OF BIRTH

TELEPHONE NUMBER - INCLUDING AREA CODE

STREET ADDRESS

CITY STATE ZIP

2 PURCHASER - Complete if other than Funeral Recipient

☐ MR.
☐ MRS. FIRST NAME MIDDLE NAME LAST NAME
☐ MS.
☐ MISS SOCIAL SECURITY NUMBER
TELEPHONE NUMBER - INCLUDING AREA CODE

STREET ADDRESS

CITY STATE ZIP

3 FUNERAL ESTABLISHMENT

FUNERAL HOME NAME

STREET ADDRESS

CITY STATE ZIP

TELEPHONE NUMBER - INCLUDING AREA CODE FIRM NUMBER

5 SIGNATURES

By signing below, the Purchaser hereby accepts the terms of this Prearrangement Funeral Service Contract ("Contract") to provide for the funding of those funeral goods and services as set forth above. The term "Purchaser" shall be the same as the "Funeral Recipient" unless a separate individual has been identified as "Purchaser" under Section 2.

☐ (check if applicable) The sale evidenced by this Agreement was solicited at a location other than Seller's place of business: YOU, THE BUYER, MAY CANCEL THIS TRANSACTION AT ANY TIME PRIOR TO MIDNIGHT OF THE THIRD (3RD) BUSINESS DAY AFTER THE DATE OF THIS TRANSACTION. SEE THE ACCOMPANYING NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT. Purchaser may cancel this transaction at any time prior to midnight of the thirtieth (30th) business day after the date of this transaction and receive a full refund of all monies paid. For cancellation after thirty (30) days, see page 2.

X _____
PURCHASER'S SIGNATURE DATE

AUTHORIZED FUNERAL ESTABLISHMENT REPRESENTATIVE NAME SELLER'S NUMBER

X _____
AUTHORIZED FUNERAL ESTABLISHMENT REPRESENTATIVE'S SIGNATURE DATE

4 FUNDING INFORMATION

Funeral Goods & Services..... \$ _____ ☐ GUARANTEED ☐ NON-GUARANTEED

Cash Advances + \$ _____

Funeral Plan Total = \$ _____

Single Payment Amount = \$ _____

If a box is not checked, the funeral is Non-Guaranteed. Please read reverse side for description of these options.

MULTIPLE PAYMENTS

Funeral Plan Total \$ _____

LESS Downpayment (\$100 Minimum)..- \$ _____

Funeral Plan Balance = \$ _____

Select Number of Payments Desired & Write in the Number.

Age 85 & Younger - 0 to 36 months: _____ Payments

Age 80 & Younger - 0 to 60 months: _____ Payments

Age 70 & Younger - 0 to 120 months: _____ Payments

Funeral Plan Payment = \$ _____ per month

The **Funeral Plan Payment** equals the **Funeral Plan Balance** divided by the number of payments desired. The first check must be written for the downpayment **PLUS** the first month's payment.

Amount Trusted \$ _____

Funeral Plan Total less amount retained by
Funeral Home, not to exceed 10% of Funeral Plan.

Please make check(s) payable to ClearPoint Federal Bank & Trust.

SHOULD DEATH OCCUR PRIOR TO THE COMPLETION OF THESE PAYMENTS, THE FUNDS AVAILABLE SHALL BE THE TOTAL OF ALL FUNDS RECEIVED BY THE FUNERAL ESTABLISHMENT PLUS EARNINGS ON THE AMOUNT IN TRUST. THESE FUNDS SHALL BE APPLIED TO THE OUTSTANDING BALANCE OWED THE FUNERAL ESTABLISHMENT AND ANY REMAINING BALANCE SHALL BE PAID BY THE PURCHASER.

IRREVOCABLE OPTION

In accordance with RCW 18.39.250(11)(A), as a current or potential, recipient of public assistance as defined in RCW 74.04.005, I am signing this statement to waive and renounce my right to cancel this contract. I understand I will not be entitled to a refund of any money I have paid in order to become or remain eligible for such assistance.

X _____
PURCHASER'S SIGNATURE DATE

DISCLOSURES

FUNERAL GOODS & SERVICES. The Funeral Establishment shall provide the selected funeral as shown in this Contract or on an attached statement of goods and services unless factors beyond its control, defined in Section 18.39 of the Revised Code of Washington ("RCW") prevent it from doing so. The Funeral Establishment will furnish the brands or makes of goods shown or, if unavailable, goods of equivalent quality. This Contract is revocable unless the Purchaser indicates otherwise by signing in the space provided on the reverse side of this Contract.

USE OF PURCHASE PRICE. The Funeral Establishment will place at least ninety percent (90%) of the amounts contributed by the Purchaser in a trust with ClearPoint Federal Bank & Trust, ("CFBT") as stated in RCW 18.39.250. The remaining amounts contributed will be retained by the Funeral Establishment to cover the necessary expenses of setting up this contract.

GUARANTEED. If funeral goods and services are **GUARANTEED**, the Funeral Establishment agrees to accept the funds available in the Trust as full payment for the funeral goods and services selected in this Contract, even if the retail price for those items at the time of need is greater than the funds available. This Contract does not guarantee the price of cash advance items unless otherwise indicated in the space provided on the reverse side of this Contract. These items are paid by the Funeral Establishment on the Purchaser's behalf to third parties. The Funeral Establishment has no way of guaranteeing these prices at death, as they are estimated now. The Funeral Establishment is not entitled to receive any trust funds, including any growth attributable pro-rata to Non-Guaranteed cash advance items to cover the retail price of Guaranteed items unless agreed to by the Funeral Recipient's next of kin or personal representative. Any additional cost for cash advanced items will be billed to the Purchaser, the Purchaser's survivors or the Purchaser's estate after the services. Any additional items chosen which are not specifically included in this Contract will be paid for when the funeral goods and services are provided.

NON-GUARANTEED. If funeral goods and services are **NON-GUARANTEED**, the Purchaser will pay an amount equal to the cost of the goods and services selected in this Contract based on the retail price of the selected goods and services at time of need. The prices of goods and services under this Contract are subject to change in the future. Any funds paid to the Trust are only a deposit to be applied, together with accrued income less any fees, taxes and income distributions, toward the final price of the goods and services contracted for. Additional charges may be required.

RELOCATION. If funeral goods and services are provided by someone other than the Funeral Establishment designated in this Contract, the Trustee shall have the right to pay the amount in the Trust to the party that provided the services in accordance with the terms of the Master Trust. Any guarantees for funeral goods and services may not apply in such event.

CHANGE OF FUNERAL ESTABLISHMENT OR PERSON TO RECEIVE EXCESS. If the Purchaser changes their primary residence to a location outside of this state, it may be necessary to execute a new Trust Contract. Any change of Funeral Establishment, person to receive excess, or the execution of a new Trust Contract may not alter the irrevocable nature of this Trust Contract, and any waiver of the Purchaser's rights to cancel the trust may remain in effect, pursuant to applicable state law.

CANCELLATION. If this Contract is canceled within thirty (30) calendar days of its signing, a full refund of all moneys will be paid. If this Contract is canceled later than thirty (30) days, the Purchaser will receive the amount in the Trust within fifteen (15) days from the Funeral Establishment's receipt of written cancellation pursuant to applicable state law.

DEFAULT BY PURCHASER. If payments become more than thirty (30) calendar days in arrears, any guarantees regarding the preneed contract shall lapse. In such event, the Purchaser shall be responsible for paying any additional amount owed.

SELLER'S BREACH. This Contract will automatically terminate if the Seller goes out of business, becomes insolvent or bankrupt, makes an assignment for the benefit of creditors or for any other reason is unable to fulfill its obligations under this Contract. In such event, and upon demand by you or the Beneficiary of the Contract, the Trustees will refund to you or the Beneficiary all funds deposited under this Contract, unless otherwise ordered by the court of competent jurisdiction. Or, you may arrange for another funeral establishment to accept the funds in trust and to provide the merchandise and services.

EXONERATION. CFBT shall not be responsible for the provision of goods and services by the Funeral Establishment. Delivery by CFBT of all assets held by CFBT hereunder to the Funeral Establishment in accordance with this Contract shall relieve CFBT of liability under its Master Trust and this Contract. The Purchaser, Purchaser's beneficiaries, heirs, personal representatives and assigns, agree that no claim or demand of any kind or nature whatsoever shall be made upon or asserted against CFBT resulting from or arising out of any act or omission of the Funeral Establishment. The Funeral Establishment shall be the sole party to whom the Purchaser shall make claim or demand of any kind or nature whatsoever.

DISBURSEMENT. The Seller or the Funeral Establishment, if so designated, is required to furnish, within fifteen (15) days of receiving a written request, a written statement of all contributions made. Any assets held by CFBT as part of the Trust shall be delivered to the Funeral Establishment within thirty (30) days after receipt of proof of death of the Funeral Recipient and the Funeral Establishment and a witness have certified in writing that the Funeral Establishment has provided the goods and services under this Contract. If the Purchaser dies or becomes incompetent or incapacitated, their rights under this Contract may be exercised by their legal representative.

ACKNOWLEDGMENT. The Funeral Establishment may request that certain taxes be paid from the earnings in this Trust. This may reduce the funds available to the Purchaser to pay for the funeral. By executing this Contract on the signature line provided on the reverse side, the Purchaser acknowledges and certifies that: (a) they have read this Contract; (b) the social security number and other personal information set forth on the reverse side is true and correct as the date hereof; (c) they are not subject to any mandatory withholding of income requirement imposed by the Internal Revenue Service; (d) they are aware of the Trustee's obligation to report any income earned on account of this trust to the Internal Revenue Service and appropriate state taxing authorities; and (e) that they were shown current General Casket and Outer Burial Container price lists prior to discussing these prices, goods or services.

The Prearrangement Funeral Service Contract is not accepted by CFBT until it is received in CFBT's home office located in Batesville, Indiana. The Trustee will receive reasonable compensation in accordance with the Master Trust. Upon distribution of all assets held in the Trust, this Contract shall terminate, the Trust shall terminate, and the parties shall have no further duties or obligations under this Contract or the Master Trust.

STATEMENT OF GOODS & SERVICES

Contract Number: _____

Name of Funeral Establishment _____

Address _____

Phone Number _____

FUNERAL GOODS and SERVICES — PLEASE SEE DEFINITION ON THE CONTRACT**OUR SERVICE**

Minimum Professional Staff Services \$ _____

Additional Staff Services \$ _____

Embalming \$ _____

If you have selected a funeral that may require embalming, such as a funeral with viewing, you may have to pay for embalming. You do not have to pay for embalming you did not approve if you selected arrangements such as a direct cremation or immediate burial. If we charge for embalming, we will explain why below:

Use of Facilities/Staff/Equipment for:

Visitation _____ Days @ \$ _____/day \$ _____

Funeral/Memorial Service \$ _____

Graveside \$ _____

Transfer of Deceased (_____ mi.) \$ _____

Family Car(s) # _____ @ \$ _____ each \$ _____

Hearse \$ _____

Escort \$ _____

Forwarding/Receiving Remains \$ _____

Other Services/Facilities/Equipment \$ _____

(Specify) _____ \$ _____

_____ \$ _____

TOTAL SERVICES\$ **DISPOSITION**☐ Burial☐ Cremation☐ Other**CASKET**☐ None\$

Manufacturer _____

Model # and Name _____

Exterior Material & Color _____

Interior Material & Color _____

URN ALLOWANCE\$

Manufacturer _____

Model # and Name _____

Material _____

OTHER MERCHANDISE (Specify)_____ \$ **GEOGRAPHIC RESTRICTIONS (Specify)**

REQUIRED PURCHASES

Charges are only for those items that you selected or that are required. If we are required by law or by a cemetery or crematory to use any items, we will explain the reasons in writing below. Any legal, cemetery or crematory requirement that we represented to you as compelling the purchase of any goods and services called for by this Agreement is identified and described below:

TOTAL FUNERAL PRICE\$ **CASH ADVANCE ITEMS — PLEASE SEE DEFINITION ON THE CONTRACT**

Acknowledgement Cards \$ _____

Obituary Notices \$ _____

Death Certificate \$ _____

Flowers \$ _____

Clergy Honorarium \$ _____

Music \$ _____

Motorcycle Escort \$ _____

Grave Opening and Closing \$ _____

Sales Tax \$ _____

Other (Specify) _____ \$ _____

_____ \$ _____

ALLOWANCE FOR CASH ADVANCE ITEMS\$ **FUNERAL PLAN TOTAL**\$

FUNERAL RECIPIENT'S NAME - Please Print _____

PURCHASER'S NAME - Please Print _____

X

PURCHASER'S SIGNATURE _____

FUNERAL ESTABLISHMENT NAME _____

NAME OF FUNERAL ESTABLISHMENT REPRESENTATIVE - Please Print _____

X

SIGNATURE OF FUNERAL ESTABLISHMENT REPRESENTATIVE _____

DATE _____

FUNERAL ESTABLISHMENT ADDRESS _____